

		request access to the Property, but Petitioner has been unable to obtain access to the Property. (Janes Decl., ¶ 17, Exh. 10; Simon Decl., ¶ 2.) Petitioner thus has shown it is entitled to the relief requested under Civil Code section 2929.5, subdivision (d). Based on the foregoing, the motion is GRANTED. The court will sign the proposed order submitted by Petitioner. Counsel for Petitioner is ordered to give notice of this ruling.
5.	<i>Khaytovich vs. Locascio</i> 2022-01239428	Before the court is the motion of attorney Charles Gomez or Gomez Law, APC, to be relieved as counsel of record for defendant Brandon LoCascio (Client). The motion was properly served on all parties and Client, it establishes grounds for the withdrawal of counsel, and otherwise complies with the requirements of California Rules of Court, rule 3.1362. Accordingly, the motion is GRANTED. The order relieves counsel shall be effective upon counsel filing with the court a proof of service showing the signed order granting the motion was served on Client. Counsel is ordered to submit a revised proposed order that accurately reflects all future dates. Counsel further is ordered to give notice of this ruling to all parties and Client.
6.	<i>In Re: Monarch Bay Terrace Property Owners Association</i> 2026-01547636	Before the court is the continued hearing on the "Petition to Approve Amendment to Consolidate Homeowners Association CC&R's by Reducing Required Voting Percentage [Corp. Code § 7515]" filed on February 13, 2026, by petitioner Monarch Bay Terrace Property Owners Association (Petitioner). As more fully set forth below, the petition is DENIED. The service issues identified by the court in its May 21, 2026, tentative ruling have been remedied. The court will thus proceed with the merits of the petition. "If for any reason it is impractical or unduly difficult for any corporation to call or conduct a meeting of its members, delegates or directors, or otherwise obtain their consent, in the manner prescribed by its articles or bylaws, or this part, then the superior court of the proper county, upon petition of a director, officer, delegate or member, may order that such a meeting be called or that a written ballot or other form of obtaining the vote of members, delegates or directors be authorized, in such a manner as the court finds

	fair and equitable under the circumstances.” (Corp. Code, § 7515(a).) The purpose of Corporations Code section 7515 is to “overcome membership voting apathy.” (<i>Fourth La Costa Condominium Owners Assn. v. Seith</i> (2008) 159 Cal.App.4th 563, 583, citing <i>Greenback Townhomes Homeowners Assn. v. Rizan</i> (1985) 166 Cal.App.3d 843, 849.) Petitioner has not shown the failure to obtain the necessary super-majority number of votes to approve the proposed amendment is due to voter apathy or that it is otherwise impractical or unduly difficult to obtain the necessary consent from the members, rather than simply opposition to the proposed amendment. In the past, Petitioner has been able to obtain the necessary votes to pass amendment on two occasions. As for the proposed amendment, Petitioner conducted two votes with the first vote resulting in 53.5% of owners voting and the most recent vote resulting in 63.5% of owners voting. This does not appear to signal voter apathy and indeed appears to show Petitioner’s efforts at voter outreach are producing results. Moreover, in its briefs, Petitioner states a failure to vote is the equivalent of a no vote, but then also argues a failure to vote is a sign of voter apathy. (See Suppl. Reply p. 4:17-19.) It cannot be both and Petitioner has failed to show it is the latter. It also is worthy of note, the first vote involved a proposed amendment that included mandatory dues, but the second vote involved a proposed amendment that dropped mandatory dues and left that question for a subsequent vote. That change and the increase in votes between the first and second vote supports an inference at least some of the owners who are not voting are not voting because they oppose mandatory dues. Petitioner states it does not believe any further effort to obtain votes would markedly improve voter turnout, but this seems to be based entirely on speculation. Indeed, the court is not convinced the roughly 35% who did not vote did so due to apathy as opposed to opposition. As all parties note, the association at issue is a unique one in that it is actually seven separate sub-associations of varying size, a super-majority of each sub-association is necessary (as opposed to a super-majority of the entire association), and membership and dues are voluntary. This is a unique dynamic that must be considered in evaluating whether the
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		lack of necessary votes is due to apathy or undue difficulty in getting votes. As an aside, some parties point to the varying sizes of the sub-associations and the need for a super-majority of each as essentially providing the small sub-associations with a veto. That argument, however, is a red herring. Tract No. 6265 is the smallest sub-association with just six members, but five of those six members voted and voted in favor of the amendments. (Petitioner at p. 7.) As such, it was one of only two sub-associations that reached the required threshold. Moreover, in deciding this petition, the court is not empowered change the vote requirements because the court thinks the proposed changes are good changes or reasonable changes. Rather, the relevant code section only authorizes the court to change the voting requirements if it is convinced the failure to obtain the necessary super-majority number of votes to approve the proposed amendment is due to voter apathy or that it is otherwise impractical or unduly difficult to obtain the necessary consent from the members. The court is not so convinced. Petitioner states the alternative to consolidation of the CC&Rs, which is to enact amendments that would apply only to some of the seven tracts, would produce “a patchwork of CC&Rs that would be very difficult to administrate and make governance more difficult.” But no evidence is offered to support this claim. Based on the above, the Petition is DENIED. Petitioner’s request for judicial notice is GRANTED as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Evid. Code § 452, subd. (c); <i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) Counsel for Petitioner is ordered to give notice of this ruling.
7.	<i>G. vs. Santa Ana Unified School District</i> 2026-01576260	Before the court is the petition of petitioner N.G., by and through his guardian ad litem Margarita Flores (Petitioner), for relief from Government Code section 945.4 pursuant to Government Code section 946.6. As more fully set forth below, the petition is GRANTED. On December 19, 2026, Petitioner mailed by certified mail, return receipt requested, a notice of claim to respondent